EQUIPMENT HIRE AGREEMENT

HIRER

FULL NAME

ORGANISATION (IF ANY)

EMAIL

PHONE

ADDRESS

PHOTO ID TYPE AND NUMBER

HIRE DETAILS

COLLECTION DATE

COLLECTION TIME

RETURN DATE

RETURN TIME

WHERE THE EQUIPMENT WILL BE USED

HIRE FEE (NZD)

DAILY RATE IF LATE (NZD)

BOND (NZD)

ATMOS CONTACT (NAME AND PHONE)

EQUIPMENT LIST

ITEM	QTY	SERIAL OR ASSET NO.	REPLACEMENT VALUE	CONDITION AT COLLECTION

This agreement is between Atmos Media ("Atmos", "we", "us") and the hirer named above ("you"). It is made up of the hirer details, hire details and equipment list above and the terms below. "The equipment" means everything in the equipment list, including cables, cases and accessories.

01 THE HIRE

1.1 We agree to hire the equipment to you for the hire period. The hire period runs from when you collect the equipment, or we deliver it, until it is back in our hands.

1.2 The equipment stays our property at all times. You must not sell it, lend it, hire it on to anyone else, use it as security or part with it in any other way.

1.3 You must be 18 or over and show us valid photo ID when we ask. If you are hiring for an organisation, you confirm you can sign for it, and you and the organisation are both responsible under this agreement.

02 FEES AND BOND

2.1 The hire fee is payable in full before collection unless we agree otherwise in writing.

2.2 If we ask for a bond, we hold it as security. We will refund it within 7 days of the equipment coming back, less anything you owe us under this agreement. What you owe is not limited to the bond.

2.3 If the equipment comes back late, you must pay the daily rate for each day or part day it is late.

2.4 Anything else you owe us under this agreement is payable within 7 days of our invoice.

03 COLLECTION AND RETURN

3.1 Check the equipment when you receive it. Tell us about anything missing, damaged or not working before you take it away, or within 2 hours of delivery. Otherwise you accept that it was complete and in the condition recorded in the equipment list.

3.2 Transport the equipment in its cases, secured and protected from the weather.

3.3 Return all of the equipment to the agreed place by the return date and time, clean, complete and packed in the cases it came in.

3.4 We check and test equipment after it comes back, and will tell you within 5 working days if anything is missing or damaged.

04 LOOKING AFTER THE EQUIPMENT

4.1 **You are responsible for the equipment for the whole hire period,** including while it is being transported, set up, used and stored, and whoever is using it.

4.2 Keep it secure. Do not leave it unattended in a public place, in an unlocked building or vehicle, or in view in a vehicle overnight.

4.3 Keep it dry and protected from rain, moisture, dust, sand, heat and spilled drinks. Outdoor use needs proper cover.

4.4 Only let competent people set it up and operate it, and follow the manufacturer's instructions and any instructions we give you.

4.5 Use a safe and suitable power supply, and do not overload the equipment. Keep levels out of the red. Speakers and amplifiers damaged by overdriving are damaged by misuse.

4.6 Do not open, repair or modify the equipment, and do not remove or cover its labels or serial numbers.

4.7 Use the equipment only at the place in the hire details unless we agree otherwise.

4.8 You are responsible for setting up safely, including securing stands and cables, and for any permission your event needs.

05 DAMAGE, LOSS AND THEFT

5.1 **If the equipment is damaged, lost or stolen during the hire period because of negligence, misuse or a breach of this agreement, by you or by anyone you allow to handle or use it, you must pay us:**

(a) the reasonable cost of repairing it; or

(b) if it is lost, stolen or not worth repairing, the replacement value in the equipment list, or the cost of an equivalent replacement if no value is listed; and

(c) the hire fees we lose while it is being repaired or replaced, at the daily rate, for up to 14 days.

5.2 Damage, loss or theft that happens because section 4 was not followed is treated as caused by your negligence.

5.3 You are not liable for fair wear and tear, or for a fault you did not cause.

5.4 Tell us immediately about any damage, loss or theft. If the equipment is stolen or deliberately damaged, you must also report it to the Police within 24 hours and give us the report number.

5.5 If the equipment comes back dirty or with parts missing, you must pay the reasonable cost of cleaning it or replacing the missing parts.

5.6 We will give you a breakdown of what you owe, with the repair or replacement quote or invoice. We may take what you owe from the bond and invoice you for the rest.

06 FAULTS AND BREAKDOWNS

6.1 If the equipment stops working properly, stop using it and tell us straight away. Do not try to fix it yourself.

6.2 If you did not cause the fault, we will repair or replace the equipment as soon as we reasonably can, or refund the hire fee for the time you could not use it. That is the limit of what we owe you for a fault or breakdown.

07 INSURANCE

7.1 We do not insure the equipment for you while it is in your care. We recommend you arrange your own cover for the hire period, including public liability cover for your event.

08 CANCELLATION

8.1 If you cancel 48 hours or more before the collection time, we will refund the hire fee in full. If you cancel later than that, we may keep up to 50% of the hire fee. There is no refund for equipment returned early.

8.2 We may cancel before collection if the equipment becomes unavailable, for example because of a fault or a late return. If we do, we will refund everything you have paid, and that is the limit of what we owe you.

8.3 We may end the hire if you breach this agreement or we reasonably believe the equipment is at risk. If we do, you must return the equipment immediately or let us collect it.

09 LIABILITY

9.1 You use the equipment at your own risk. You are responsible for any loss, damage or injury caused by how the equipment is transported, set up or used during the hire period, and you will cover us for any claim made against us because of it, except to the extent our negligence caused it.

9.2 We are not liable for indirect or consequential loss, loss of profit or revenue, or the cost of a cancelled or disrupted event. Our total liability to you under this agreement is limited to the hire fee.

9.3 If you are hiring for a business, you agree that the Consumer Guarantees Act 1993 does not apply. Otherwise, nothing in this agreement limits your rights under that Act, or any liability that cannot be limited by law.

10 GENERAL

10.1 This agreement is the whole agreement between us about the hire and replaces anything said or written earlier.

10.2 Changes are valid only if agreed in writing. An email or message between you and your Atmos contact counts as writing.

10.3 We hold your details, including your ID details, to run the hire and keep our records, as set out in our privacy policy at atmosmedia.co.nz/legal/privacy.

10.4 This agreement may be signed electronically and in separate copies.

10.5 If we disagree about anything in this agreement, we will both try to sort it out by talking first. New Zealand law applies and the New Zealand courts have jurisdiction.

By signing, each of us confirms we have read this agreement and agree to it.

Hirer

SIGNATURE

NAME | DATE

Atmos Media

SIGNATURE

NAME AND ROLE | DATE

Condition check, completed with the hirer present where possible.

At collection

DATE AND TIME | HIRER INITIALS

CHECKED BY (ATMOS)

At return

DATE AND TIME | HIRER INITIALS

CHECKED BY (ATMOS)

NOTES ON MISSING OR DAMAGED ITEMS